

Plaintiffs do not contend every settlement requires an executed writing; they rely on open negotiations, unfinished client communication, no Seavey assent to the asserted walkaway, and no PDSSA approval. (*People v. Williams* (2022) 75 Cal.App.5th 584 and *Levine v. Berschneider* (2020) 56 Ca1.App.5th 916 concern candor, not authority to settle an organizational client's case. Rule 3.3's correction duty is consistent with Plaintiffs' reliance on Garcia's failure to correct the CM-200 after immediate repudiation.

Finally, the Opposition's corporate history, family relationships, historical demands, and merits narrative are collateral to assent and punitive state of mind. Counsel was free to advise that claims were weak, remedies unrealistic, or trial expensive; those opinions did not transfer PDSSA's settlement decision to counsel. Nor do *Morrison Knudsen Corp. v. Hancock, Rothert & Bunshoft* (1999) 69 Ca1.App.4th 223 or *Skarbrevik v. Cohen, England & Whitfield* (1991) 231 Cal.App.3d 692 establish authority that the entity expressly reserved. Plaintiffs do not claim Garcia represented every director individually; they rely on PDSSA's entity rights and the individual Plaintiffs' rights and harms already presented in the Motion. Factual disputes call for weighing under section 3295(c), not automatic denial.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2407578	HEATH VS CITY OF PALM SPRINGS	HEARING RE: MOTION TO COMPEL PERSON(S) MOST KNOWLEDGEABLE DEPOSITION AND DOCUMENTS

Tentative Ruling: No tentative ruling. Hearing will be conducted on Monday, August 24, 2026 at 8:30 a.m., Department PS2.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2407621	ESCAMILLA VS AMERICAN HONDA MOTOR CO., INC., A CALIFORNIA CORPORATION	HEARING ON MOTION FOR SUMMARY ADJUDICATION ON COMPLAINT FOR BREACH OF CONTRACT/WARRANTY (OVER \$35,000) OF JOSE M. ESCAMILLA BY AMERICAN HONDA MOTOR CO., INC., A CALIFORNIA CORPORATION

Tentative Ruling: Granted.

Moving party to file proposed judgment within 10 days of this order becoming final.

Moving party to provide notice pursuant to CCP 1019.5.

In November of 2022 Plaintiffs Jose Escamilla and Lisset Acosta purchased a used 2020 Honda Civic manufactured by defendant American Honda Motor Co. and sold by Unicars Honda, an independently-owned dealership. When the vehicle had first been sold, it had come with a standard new vehicle limited warranty, which had not expired at the time the plaintiffs purchased the vehicle. In addition, plaintiffs received a Certified Pre-Owned Vehicle warranty. The terms of the CPO Warranty have not been described in detail to the court; however, in discovery responses Honda admitted "that it provided an express limited Certified Pre-Owned Warranty for the SUBJECT VEHICLE at the time of ... Plaintiffs' purchase." (Defendant's response to RFA #7, Virasingh declaration, Exhibit "2".)